

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 40-001
Amendments to Title 5 of the Chickasaw Nation Code
(Healing to Wellness Courts)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously passed rules and regulations on tribal courts and procedures and wishes to amend those rules.

NOW, THEREFORE, BE IT RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 3, Article B, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through):

ARTICLE B
CHICKASAW NATION HEALING TO WELLNESS COURT

SECTION 5-302.1 **CREATION AND PURPOSE.**

A. The Chickasaw Nation hereby establishes its Chickasaw Nation Healing to Wellness Courts.

B. The Chickasaw Nation Healing to Wellness Courts are to:

1. offer treatment to offenders who have committed a crime that is directly or indirectly related to mental health, substance abuse, addiction, and other conditions that may be a focus of clinical attention;
2. identify and recommend potential participants to the Wellness Court for legal and clinical screening as soon as possible during any stage of the criminal court process;
3. strictly monitor and supervise each participant through random and frequent drug and alcohol testing, court appearances, and all Wellness Court requirements;

4. impose immediate sanctions and offer immediate rewards or incentives when a participant's behavior warrants such actions; and

5. make the participant a part of the Wellness Court and to encourage and support each participant in the goal of individual wellness.

SECTION 5-302.2

DEFINITIONS.

"Wellness Court" means the entire Healing to Wellness Court programs including, but not limited to, Drug Court, Driving Under the Influence Court, Veterans Court, Mental Health Court, Domestic Violence Court, and Family Court.

SECTION 5-302.3

JURISDICTION.

A. The Wellness Court shall have jurisdiction over any case that is transferred to it by an order of the Chickasaw Nation District Court. Upon successful completion of the Wellness Court program, or at such time when a participant of the Wellness Court becomes ineligible to continue in the program as set out in the Wellness Court rules, policies, and procedures, the Wellness Court shall transfer jurisdiction of the case back to the Chickasaw Nation District Court for final disposition.

B. Referrals to the Wellness Court may be made by prosecutors, defense counsel, social workers, case managers, and health care providers who provide services to the Wellness Court or work within the Chickasaw Nation District Court system.

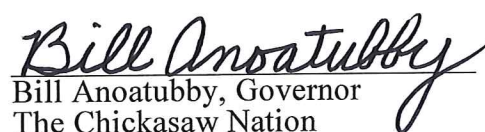
C. Once a referral is made to the Wellness Court, potential participants shall be evaluated for eligibility and report back to the Chickasaw Nation District Court about the eligibility of the potential participant.

D. Each Wellness Court shall establish its own policies and procedures and amend and modify its policies and procedures as necessary.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on November 18, 2022, by a vote of 13 ayes; 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: NOV 18 2022

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Explanation:

This resolution amends the Chickasaw Nation Code to add diversionary programs as an alternative to incarceration. The aim of the Healing to Wellness Court program is to reduce future criminal activity.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature